

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3

4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING PRELIMINARY INJUNCTION LAWS; AND AMENDING
5 SECTIONS 27-19-201 AND 27-19-315, MCA."

6

7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

8

9 **Section 1.** Section 27-19-201, MCA, is amended to read:

10 **"27-19-201. When preliminary injunction may be granted --when injunction order may be**

11 **granted --legislative intent.** (1) A preliminary injunction order or temporary restraining order may be granted
12 when the applicant establishes that:

13 (a) ~~the applicant is likely to succeed on the merits;~~

14 (b) ~~the applicant is likely to suffer irreparable harm in the absence of preliminary relief;~~

15 (c) ~~the balance of equities tips in the applicant's favor; and~~

16 (d) ~~the order is in the public interest.~~

17 (1) An injunction order may be granted in the following cases:

18 (a) when it appears that the applicant is entitled to the relief demanded and the relief or any part of
19 the relief consists in restraining the commission or continuance of the act complained of, either for a limited
20 period or perpetually;

21 (b) when it appears that the commission or continuance of some act during the litigation would
22 produce a great or irreparable injury to the applicant;

23 (c) when it appears during the litigation that the adverse party is doing or threatens or is about to
24 do or is procuring or suffering to be done some act in violation of the applicant's rights, respecting the subject of
25 the action, and tending to render the judgment ineffectual;

26 (2) ~~An injunction order may be granted in either of the following cases between persons, not~~
27 ~~including a person being sued in that person's official capacity:~~

28 (a)(d) when it appears that the adverse party, while the action is pending, threatens or is about to

1 remove or to dispose of the adverse party's property with intent to defraud the applicant, in which case an
2 injunction order may be granted to restrain the removal or disposition; or
3 ~~(b)(e)~~ when it appears that the applicant has applied for an order under the provisions of 40-4-121 or
4 an order of protection under Title 40, chapter 15.
5 ~~(3)(2)~~ The applicant for an injunction provided for in this section bears the burden of demonstrating
6 the need for an injunction order.
7 ~~(4) — It is the intent of the legislature that the language in subsection (1) mirror the federal~~
8 ~~preliminary injunction standard, and that interpretation and application of subsection (1) closely follow United~~
9 ~~States supreme court case law."~~

10

11 **Section 2.** Section 27-19-315, MCA, is amended to read:

12 **"27-19-315. When restraining order may be granted without notice.** (1) Except as provided in
13 subsection (2), a temporary restraining order may be granted without written or oral notice to the adverse party
14 or the party's attorney only if:

15 (a) the applicant or the applicant's attorney makes a showing that the requirements of ~~27-19-~~
16 ~~201(1)~~ 27-19-201 are met; and

17 (b) the applicant or the applicant's attorney certifies to the court in writing the efforts, if any, that
18 have been made to give notice and the reasons supporting the applicant's claim that notice should not be
19 required.

20 (2) If the state, the state's departments, agencies, or political subdivisions, or officers of the state
21 or a political subdivision acting in their official capacities are the adverse party, a temporary restraining order
22 may not be granted unless:

23 (a) notice could not be provided through no fault of the moving party; or

24 (b) the suit is brought pursuant to Title 40.

25 (3) As used in this section, "political subdivision" has the meaning provided in 2-9-101."

26 - END -